



U.S. Customs and Border Protection

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RE: Notice of Initiation of Investigation and Interim Measures: Consolidated EAPA Case 7657

Dear Counsel and/or Representatives for the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (CBP) has commenced a formal investigation under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (EAPA). Specifically, CBP is investigating whether Big D LLC (Big D),¹ Colorquartz New York Inc. (Colorquartz), Cumberland Cabinet and Design Inc. (Cumberland), Durian Kitchen Depot Inc. (Durian),² Flowery Stone Inc. (Flowery Stone), Kat Specialties Inc. (Kat), Kingway Construction Supplier

¹ We note that Big D also does business as Big M Trading Inc. See Cambria Company LLC's Letter, "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Big D LLC," dated July 27, 2021 (Allegation 7670).

² TRLED notes that Durian also does business as MS Stone Co. Ltd. (MS Stone). See discussion below in the "Other Evidence of Evasion" section for more information.

Inc. (Kingway), Nio Kitchen Depot Inc. (Nio),³ Nomadic Barthers Inc. (Nomadic), and Opaly USA LLC (Opaly) (collectively referred to as the “Importers”) evaded antidumping duty (AD) order A-570-084 and countervailing duty (CVD) order C-570-085⁴ by entering into the United States Chinese-origin quartz surface products (QSP) that were transshipped through Malaysia. Based on a review of available information, CBP has determined that there is reasonable suspicion of evasion of AD/CVD duties by the Importers; therefore, CBP has imposed the interim measures outlined below.

Period of Investigation

Pursuant to 19 CFR 165.2, entries covered by an EAPA investigation “are those entries of allegedly covered merchandise made within one year before the receipt of an allegation”⁵ Entry is defined as an “entry for consumption, or withdrawal from warehouse for consumption, of merchandise in the customs territory of the United States.”⁶ Cambria Company LLC (referred to hereafter as Cambria) filed EAPA allegations against each of the Importers on July 27, 2021, and November 26, 2021, respectively.⁷ CBP acknowledged receipt of the properly filed Allegations on October 13, 2021 and December 1, 2021, respectively.⁸ Therefore, the entries covered by the period of investigation (POI) are those entered for consumption, or withdrawn

³ TRLED notes that Nio also does business as Nio Home Depot (Nio Home Depot). See discussion below in the “Other Evidence of Evasion” section for more information.

⁴ See *Certain Quartz Surface Products from the People’s Republic of China: Antidumping and Countervailing Duty Orders*, 84 FR 33053 (July 11, 2019) (the *Orders*).

⁵ See 19 CFR 165.2.

⁶ See 19 CFR 165.1.

⁷ See Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Colorquartz New York Inc.,” dated July 27, 2021 (Allegation 7657); Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Durian Kitchen Depot Inc.,” dated July 27, 2021 (Allegation 7658); Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Cumberland Cabinet and Design Inc.,” dated July 27, 2021 (Allegation 7665); Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Kat Specialties, Inc.,” dated July 27, 2021 (Allegation 7666); Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Nomadic Barthers Inc.,” dated July 27, 2021 (Allegation 7667); Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Opaly USA LLC,” dated July 27, 2021 (Allegation 7668); Allegation 7670; Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Flowery Stone Inc.,” dated July 27, 2021 (Allegation 7671); Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Kingway Construction Supplier Inc.,” dated July 27, 2021 (Allegation 7672); and Cambria’s Letter, “Quartz Surface Products from the People’s Republic of China: Request for an Investigation under the Enforce and Protect Act of Nio Kitchen Depot Inc.,” dated November 26, 2021 (Allegation 7700) (collectively, the Allegations).

⁸ See TRLED’s Email, “EAPA 7657: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7658: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7665: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7666: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7667: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7668: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7670: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7671: Receipt of the Allegation,” dated October 13, 2021; TRLED’s Email, “EAPA 7672: Receipt of the Allegation,” dated October 13, 2021; and TRLED’s Email, “EAPA 7700: Receipt of the Allegation,” dated December 1, 2021.

from warehouse for consumption, from October 13, 2020, through the pendency of this investigation.⁹

Initiation

On November 3 and December 3, 2021, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, initiated investigations under EAPA¹⁰ as a result of the Allegations submitted by Cambria regarding the evasion of AD/CVD duties by the Importers.¹¹ Cambria alleged that the Importers entered Chinese-origin QSP into the United States that were transshipped through Malaysia and falsely entered as Malaysian-origin merchandise to evade the *Orders*.¹²

TRLED will initiate an investigation if it determines that “{t}he information provided in the allegation... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”¹³ Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”¹⁴ Thus, the allegation must reasonably suggest not only that merchandise covered by an AD and/or CVD order was entered into the United States by the importer alleged to be evading, but that such entry was made by a material false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.

In assessing the claims made and evidence provided in the Allegations, TRLED found that the information provided suggests that the Importers are evading the *Orders*, by importing Chinese origin QSP into the United States that had been transshipped through Malaysia and failing to declare the merchandise as subject to the *Orders*. The evasion schemes described by Cambria in the Allegations involve several exporters in Malaysia, Ever Stone World Sdn. Bhd. (Ever Stone) and MSW Building Supply Sdn. Bhd. (MSW), and its affiliates LLWF Cabinets and Stone (LLWF), Monthong Building Supply Sdn. Bhd. (Monthong), MSI Building Supply Sdn. Bhd. (MSI), and South Wales Furniture Sdn. Bhd. (South Wales), (collectively, the MSW Companies), and the Importers.¹⁵ Specifically, Cambria claimed that the Importers were involved in one of two transshipment schemes. In the first scheme, Cambria contended that Colorquartz, Cumberland, Kat, Nomadic, and Opaly import QSP manufactured in China without

⁹ See 19 CFR 165.22 (when CBP consolidates multiple allegations into a single investigation, as we have done here, the date on which CBP receives the first of such allegations will be used to calculate the period of investigation).

¹⁰ See Memorandum, “Initiation of Consolidated Investigation for EAPA Case 7657,” dated November 3, 2021 (November 3 Initiation Memorandum); and Memorandum, “Initiation of Investigation for EAPA Case 7657: Nio Kitchen Depot Inc.,” December 3, 2021 (December 3 Initiation Memorandum) (collectively, Initiation Memoranda).

¹¹ See, generally, the Allegations.

¹² *Id.*

¹³ See 19 CFR 165.15(b).

¹⁴ See 19 CFR 165.1.

¹⁵ See, e.g., November 3 Initiation Memorandum at 2 and 3; and December 3 Initiation Memorandum at 2.

the payment of AD/CVD duties by claiming Ever Stone produces the QSP in Malaysia.¹⁶ In the second scheme, Cambria claimed that Big D, Durian, Flowery Stone, Kingway, and Nio are importing QSP manufactured in China without the payment of AD/CVD duties by claiming that the MSW Companies produce the QSP in Malaysia.¹⁷

In support of its transshipment claims, Cambria employed a foreign market researcher to collect corporate information and [activity] the reported business locations of Ever Stone, and the MSW Companies. Regarding Ever Stone, Cambria stated that the business registration documents demonstrate that Mr. Tee Yang Wei (Mr. Tee) owns 100 percent of Ever Stone and is a partial owner and director of Ever Freight Logistics Sdn. Bhd. (Ever Freight).¹⁸ Further, both entities share the same business address. As such, Cambria claimed that both companies are affiliated and appear to be acting together.¹⁹ Additionally, a [examination of area] and a conversation [persons], indicate that Ever Stone likely does not have the capability to produce QSP.²⁰ This claim is supported by the documentation from Cambria showing that Mr. Tee provided [person] with a [document] and [sales information], and subsequently admitted that Ever Stone will provide Chinese-origin QSP with [documents].²¹ Thus, according to Cambria, Mr. Tee directly acknowledged that Ever Stone is involved in transshipping Chinese-origin QSP through Malaysia to the United States in order to avoid paying the applicable AD/CVD duties.

Regarding the MSW Companies, Cambria similarly employed a foreign market researcher to collect business information and [activity at certain locations]. Based on conversations between the foreign market researcher and YC Feng (also known as Yongxiang Feng, referred to hereafter as Mr. Feng), [position at company], it appears likely that MSW, LLWF, and South Wales are owned by Mr. Huang Jianmin (Mr. Huang).²² Record information indicates that LLWF and South Wales have the same business address.²³ Further, during a conversation with the foreign market researcher, Mr. Huang explained that he could ship QSP from MSW or South Wales.²⁴ As such, Cambria asserts that the MSW Companies may act together to transship Chinese-origin QSP.

During the [activity] MSW, Mr. Feng also explained that MSW has a warehouse, but no production facility.²⁵ The foreign market researcher further reported neither hearing nor seeing any signs of production at LLWF or South Wales.²⁶ In addition to speaking with Mr. Feng, the foreign market researcher also [activity with an individual], where [person] described the

¹⁶ See, e.g., November 3 Initiation Memorandum at 2.

¹⁷ See, e.g., November 3 Initiation Memorandum at 3; and December 3 Initiation Memorandum at 2.

¹⁸ See Allegation 7657 at 6; Allegation 7665 at 6-7; Allegation 7666 at 6-7; Allegation 7667 at 6-7; and Allegation 7668 at 6-7.

¹⁹ *Id.*

²⁰ See Allegation 7657 at 7 and Exhibit 6; Allegation 7665 at 7-8 and Exhibit 8; Allegation 7666 at 7-8 and Exhibit 8; Allegation 7667 at 7-8 and Exhibit 8; and Allegation 7668 at 7-8 and Exhibit 7.

²¹ See Allegation 7657 at 7-8 and Exhibit 6; Allegation 7665 at 7-8 and Exhibit 8; Allegation 7666 at 7-8 and Exhibit 8; Allegation 7667 at 7-8 and Exhibit 8; and Allegation 7668 at 7-8 and Exhibit 7.

²² See Allegation 7658 at 6-8 and Exhibit 5; Allegation 7670 at 6-8 and Exhibit 4; Allegation 7671 at 6-8 and Exhibit 5; Allegation 7672 at 6-8 and Exhibit 5; and Allegation 7700 at 6-8, and Exhibit 5.

²³ *Id.*

²⁴ See Allegation 7658 at Exhibit 5; Allegation 7670 at Exhibit 4; Allegation 7671 at Exhibit 5; Allegation 7672 at Exhibit 5; and Allegation 7700 at Exhibit 5.

²⁵ *Id.*

²⁶ *Id.*

transshipment process. Specifically, [person] explained that the QSP is manufactured in China and usually [time to conduct an activity].²⁷ He further clarified that his “[persons]” in Malaysia [activity] the QSP cannot be traced back to China.²⁸ As a result, Cambria claimed this evidence demonstrates that the MSW Companies are likely engaged in transshipping Chinese-origin QSP through Malaysia to the United States.

Cambria noted that two importers (*i.e.*, Durian and Nio) are located at 17800 Castleton St., Ste 665, City of Industry, CA 91748.²⁹ According to Cambria, Rikett Quartz Tile (Rikett), a quartz flooring manufacturing company owned by a Chinese parent company, and a company referred to as HXH Inc., are also located at this same address.³⁰ Additionally, Cambria placed information on the record which indicates that Durian has an office in [place].³¹ Based on this information, Cambria contends that because Nio, as well as Durian, import QSP from the MSW Companies, both probably acted with full knowledge of its role in an evasion scheme to avoid paying AD/CVD duties on Chinese-origin QSP.

As additional evidence that transshipment is occurring, Cambria provided trade data from [company], a trade subscription service, for each of the Importers. According to these data, each of the Importers made numerous imports of products that are described as QSP and shipped from Ever Stone or the MSW Companies in Malaysia.³² To further support its claim that shipments of QSP from Malaysia are numerous, Cambria provided United States International Trade Commission’s DataWeb (DataWeb) data. These data also indicated that U.S. imports of Malaysian QSP surged shortly after the preliminary imposition of AD/CVD duties on QSP from China in December 2018.³³

Finally, Cambria explained that even if the Chinese-origin QSP is subject to minimal amounts of processing in Malaysia, the scope of the *Orders* cover a wide variety of possible third country alterations.³⁴ Moreover, because AD duties of Chinese-origin QSP are between 255.27 and 326.15 percent, and CVD duties between 45.32 and 190.99 percent, Cambria claimed that it is highly unlikely that the Importers properly designated their imports as subject to the *Orders* and paid combined duties of approximately 300 to 400 percent.³⁵ Given this evidence and the other

²⁷ *Id.*

²⁸ *Id.*

²⁹ See Allegation 7658 at 5; and Allegation 7700 at 5.

³⁰ See Allegation 7658 at 9 and Exhibits 6, and 7; and Allegation 7700 at 9-10, and Exhibits 6, and 7.

³¹ See Allegation 7658 at 9-10 and Exhibit 5; and Allegation 7700 at 10 and Exhibit 5.

³² See Allegation 7657 at Exhibit 4; Allegation 7658 at Exhibit 3; Allegation 7665 at Exhibit 5; Allegation 7666 at Exhibit 4; Allegation 7667 at Exhibit 3; Allegation 7668 at Exhibit 3; Allegation 7670 at Exhibit 3; Allegation 7671 at Exhibit 3; Allegation 7672 at Exhibit 3; and Allegation 7700 at Exhibit 3.

³³ See Allegation 7657 at 9-10 and Exhibit 10; Allegation 7658 at 10-11 and Exhibit 8; Allegation 7665 at 9-10 and Exhibit 10; Allegation 7666 at 8-9 and Exhibit 10; Allegation 7667 at 9-10 and Exhibit 11; Allegation 7668 at 8-9 and Exhibit 9; Allegation 7670 at 9-10 and Exhibit 5; Allegation 7671 at 9-10 and Exhibit 6; Allegation 7672 at 9-10 and Exhibit 7; and Allegation 7700 at 10-11 and Exhibit 8.

³⁴ See Allegation 7657 at 10-11; Allegation 7658 at 11-12; Allegation 7665 at 10-11; Allegation 7666 at 10; Allegation 7667 at 11; Allegation 7668 at 10; Allegation 7670 at 10-11; Allegation 7671 at 10-11; Allegation 7672 at 10-11; and Allegation 7700 at 11-12. See also the *Orders*, which list a variety of further processing to the QSP which would not render it outside the scope.

³⁵ See Allegation 7657 at 10; Allegation 7658 at 12; Allegation 7665 at 10; Allegation 7666 at 10; Allegation 7667 at 10-11; Allegation 7668 at 10; Allegation 7670 at 11; Allegation 7671 at 11; Allegation 7672 at 11; and Allegation 7700 at 12. See also the *Orders*.

information on the record, Cambria claimed that there is sufficient evidence that the Importers are evading paying the appropriate AD/CVD duties on Chinese-origin QSP.

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, TRLED will decide based on the record of the investigation if there is reasonable suspicion that such merchandise covered by the *Orders* was entered into the United States through evasion. CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD and/or CVD order into the United States by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 USC 1517(e) and 19 CFR 165.24. As explained below, CBP is imposing interim measures because, based on the record evidence, there is reasonable suspicion that the Importers entered covered merchandise into the customs territory of the United States through evasion by means of transshipment through Malaysia, or by not declaring the correct entry type.

CF-28 Responses and Analysis

CBP issued CBP Form 28 (CF28) requests for information to the Importers, requesting various information including invoices, packing slips, bills of lading, sources of raw materials, and customs documentation for entries from Malaysia made during the POI. As outlined below, the Importers' responses contain multiple discrepancies and are not complete. Therefore, TRLED is unable to rely on the information contained in the CF28 responses to determine the country of origin of the imported QSP.

Colorquartz

On November 12, 2021, CBP requested from Colorquartz information concerning entry numbers [number]6825 and [number]0236, which had entry dates of [date], and [date], respectively.³⁶ Colorquartz submitted timely but partial responses on December 12, 2021.³⁷ As outlined below, Colorquartz's responses to the CF28s contain multiple discrepancies and are not complete. Therefore, TRLED is unable to rely on the information contained in the CF28 responses to determine the country of origin of Colorquartz's QSP entries.

Colorquartz indicated the Malaysian supplier for entries [number]0236 and [number]6825 are Ever Stone.³⁸ As part of its CF28 Responses, Colorquartz provided certain information regarding the QSP production process and its raw material acquisitions. Specifically, Colorquartz submitted seven photographs of what they allege are Ever Stone's QSP production equipment in Malaysia; however, there is no accompanying narrative description explaining what each piece of equipment is used for, as requested.³⁹

³⁶ See CF28s issued to Colorquartz, dated November 12, 2021 (Colorquartz's CF28 Requests).

³⁷ See Colorquartz's CF28 Responses, dated December 12, 2021 (Colorquartz's CF28 Responses).

³⁸ *Id.*

³⁹ *Id.*

In terms of raw material acquisitions, Colorquartz did not answer most of the questions contained in the CF28. Specifically, the following requested information was not provided with respect to the production of the entries at issue: (a) complete production records, including raw material purchase orders, commercial invoices, transportation documents and proof of payment; (b) container load plans from each raw material manufacturer, including the dated receipt and signature of receipt for raw materials; (c) foreign customs documentation for all raw materials, if they are imported; (d) complete factory production records, including stamped timecards and work orders, as well as packaging costs and information; (e) a demonstration as to how the manufacturer ties the raw materials to the finished products, for example, a purchase order or invoice number which appears on production documents; (f) the name of the factory owner and all corporate officers; and (g) whether the foreign producer/exporter has a relationship with Colorquartz, and if so, whether this affects the price paid or payable.⁴⁰ Absent such information, CBP is unable to determine where the QSP was produced and who produced it.

Colorquartz provided an “ingredient and supplier list” for raw materials used in the production of QSP and a “production formula,” “material application record,” “material component part” record, slab production sheets, and quality inspection documents for each QSP order under both entry numbers.⁴¹ There are several issues with these documents. First, the “ingredient and supplier lists” indicate that Ever Stone purchases raw materials from Malaysian suppliers, but as indicated above, there was no documentation (*e.g.*, raw material transport documents or purchase receipts) to substantiate this claim. There is also no way to tie the amounts of the raw materials listed in “ingredient and supplier lists” to the actual production of QSP for either entry number. For example, the material application records indicate that Ever Stone required [number] kilograms (kgs) of quartz sand ([specification]) and [number] kgs of quartz sand ([specification]) to fulfill the [number] and [number] piece orders covered by entry numbers [number]0236 and [number]6825, respectively; however, there are no records demonstrating whether Ever Stone ever acquired this raw material or that it actually produced QSP. Moreover, the total weight of the materials consumed to make QSP, [number] kg, does not equal the net weight of the shipment of the QSP, [number].

Next, the “production formula,” “material application record,” and “material component part” record each contain the same information, and none of these documents contains dates or signatures. It appears that these documents were likely generated for the purpose of responding to CBP’s CF28s, and not at the time of production. As such, there is no indication that these documents represent records generated in the ordinary course of business. The same pattern holds true for the slab production sheets. Both documents are almost identical and contain no dates or signatures. Therefore, it is again likely that these documents were not generated in the normal course of business, and it is not possible to tie these documents to any of the other ones provided.⁴² TRLED thus does not have information needed to confirm where the QSP was produced and whether Ever Stone produced it.

⁴⁰ See Colorquartz’s CF28 Requests.

⁴¹ See Colorquartz’s CF28 Responses.

⁴² *Id.*

CBP additionally requested information about Ever Stone's manufacturing operations including how long the factory has been open, factory owner/corporate officer information, and whether Colorquartz and Ever Stone are related entities. As indicated above, in response to these questions, Colorquartz did not provide any of this requested information in its CF28 responses.⁴³ Without such information, CBP cannot determine whether Colorquartz and Ever Stone are related entities or analyze Ever Stone's claimed manufacturing capabilities.

Finally, CBP requested entry transaction information from Colorquartz.⁴⁴ Of the requested entry documents, Colorquartz provided purchase orders, *proforma* invoices, commercial invoices, packing lists, certificates of origin, and bills of lading.⁴⁵ The commercial invoice covering entry number [number]6825 lists a total value of USD [number] and a quantity of [number] pieces of QSP. The commercial invoice covering entry number [number]0236 lists a total amount of USD [number] and a quantity of [number] pieces of QSP.⁴⁶ The packing lists indicate that gross weight for the [number] and [number] piece shipments is [number] kgs and [number] kgs, respectively.⁴⁷ For the [number] piece order, the bill of lading lists a similar total quantity to the packing list of [number] kgs; however, the Malaysian certificate of origin appears to contain an error, because it lists a total quantity of [number] kgs. In comparison, the quantities reported for the [number] piece entry in the packing list, bill of lading, and certificate of origin are all the same (*i.e.*, [number] kgs).

Colorquartz did not provide proof of payment or any information for forwarding agents, intermediaries, or subcontractors, as requested by CBP.⁴⁸ Without this information, CBP is unable to determine whether Ever Stone produced this QSP in Malaysia. There is also no way to understand any potential business relationships/affiliations between Colorquartz and Ever Stone, or to tie these shipments to any payment records.

In sum, with respect to the production of QSP in Malaysia, Colorquartz and Ever Stone did not answer most of the questions in the CF28. Further, the documentation provided did not tie information (*i.e.*, raw materials or finished QSP) to the exact amount of QSP covered under entry numbers [number]6825 and [number]0236. With respect to entry information, Colorquartz provided some of the requested documents, but was unable to tie the documents it did submit to the entry numbers. Therefore, CBP is unable to determine that the country of origin of the QSP entered by Colorquartz was Malaysia.

Cumberland

On November 10, 2021, CBP requested from Cumberland information concerning entry number [number]4337, entry date [date].⁴⁹ Cumberland submitted a timely but partial response on December 10, 2021.⁵⁰ As outlined below, Cumberland's response to the CF28 contains multiple

⁴³ *Id.*

⁴⁴ See Colorquartz's CF28 Requests.

⁴⁵ See Colorquartz's CF28 Responses.

⁴⁶ *Id.*

⁴⁷ *Id.*

⁴⁸ See Colorquartz's CF28 Requests and Colorquartz's CF28 Responses.

⁴⁹ See CF28 issued to Cumberland, dated November 10, 2021 (Cumberland's CF28 Request).

⁵⁰ See Cumberland's CF-28 Response, dated December 10, 2021 (Cumberland's CF28 Response).

discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in the CF28 response to determine where the imported QSP was manufactured.

Cumberland indicated the Malaysian supplier for entry [number]4337 is Ever Stone.⁵¹ As part of its CF28 response, Cumberland provided certain information regarding its raw material acquisitions and QSP production process.⁵² Specifically, it submitted seven photographs of some of Ever Stone's QSP production equipment and a brief narrative description of the QSP production process.⁵³ Cumberland did not, however, explain the production capacity of each piece of equipment, as instructed by CBP.⁵⁴ More significantly, Cumberland explained that "[company engaged in an activity]".⁵⁵ In other words, this statement indicates that Ever Stone may further process slabs of QSP but may not have the ability to produce it.

In support of this statement, Cumberland provided slab production records (*i.e.*, a production list and production inspection records) from Newtex Era Sdn. Bhd. (Newtex). These documents included an invoice for QSP from Newtex to Ever Stone, a production list, and production inspection records.⁵⁶ The invoice per unit value and amount and the total amount have been blacked out and are not discernible.⁵⁷ Further, the only information that Cumberland provided regarding Ever Stone's production was a countertop production sheet and fumigation certificate.⁵⁸ As such, the information provided suggests Ever Stone did not produce the QSP covered by this entry, and instead served as a further processor of quartz slabs.

In terms of raw material acquisitions, Cumberland did not answer most of the questions contained in the CF28. Specifically, the following requested information was not provided with respect to the production of the entries at issue: (a) complete production records, including raw material purchase orders, commercial invoices, transportation documents and proof of payment; (b) container load plans from each raw material manufacturer, including the dated receipt and signature of receipt for raw materials; (c) foreign customs documentation for all raw materials, if they are imported; (d) complete factory production records, including stamped timecards and work orders, as well as packaging costs and information; (e) a demonstration as to how the manufacturer ties the raw materials to the finished products, for example, a purchase order or invoice number which appears on production documents; (f) the name of the factory owner and all corporate officers; and (g) whether the foreign producer/exporter has a relationship with Cumberland, and if so, whether this affects the price paid or payable.⁵⁹ Absent such information, CBP is unable to determine where the QSP was produced and who produced it.

Finally, CBP requested entry transaction information from Cumberland.⁶⁰ Of the requested entry documents, Cumberland provided a purchase order, *proforma* invoice, commercial invoice,

⁵¹ *Id.*

⁵² *Id.*

⁵³ *Id.*

⁵⁴ *Id.*

⁵⁵ See Cumberland's CF28 Response.

⁵⁶ *Id.*

⁵⁷ *Id.*

⁵⁸ *Id.*

⁵⁹ See Cumberland's CF28 Request.

⁶⁰ *Id.*

certificate of origin, Malaysian customs clearance documents, bill of lading, and packing list.⁶¹ The commercial invoice covering entry number [number]4337 lists a total value of USD [number] and a quantity of [number] pieces of QSP. This information matches the details provided in the other entry documents.

Cumberland did not provide proof of payment or any information for forwarding agents, intermediaries, or subcontractors, as requested by CBP.⁶² Without this information, CBP is unable to determine whether Ever Stone produced QSP in Malaysia. There is also no way to understand any potential business relationships/affiliations between Cumberland and Ever Stone, or to tie this shipment to any payment records.

In sum, with respect to the production of QSP in Malaysia, Cumberland and Ever Stone did not answer most of the questions in the CF28. Further, the documentation provided did not tie information (*i.e.*, raw materials or finished QSP) to the exact amount of QSP covered under entry number [number]4337. With respect to entry information, Cumberland provided certain requested documents, but was unable to tie the documents it did submit to the entry number. Therefore, CBP is unable to determine that the country of origin of the QSP entered by Cumberland was Malaysia.

Kat

On November 10, 2021, CBP requested from Kat information concerning entry number [number]7803, entry date [date].⁶³ Kat submitted a timely but partial response on December 10, 2021.⁶⁴ As outlined below, Kat's response to the CF28 contains multiple discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in the CF28 response to determine where the imported QSP was manufactured.

Kat indicated the Malaysian supplier for entry [number]7803 is Ever Stone.⁶⁵ As part of its CF28 response, Kat provided certain information regarding its raw material acquisitions and QSP production process.⁶⁶ Specifically, it submitted 14 photographs of some of Ever Stone's QSP production equipment.⁶⁷ Kat provided a narrative description of the overall QSP production capacity of Ever Stone; however, it did not provide the production capacity for each piece of equipment, as instructed by CBP.⁶⁸

Kat further submitted purchase orders for raw materials, an invoice covering one raw material purchase, and payment receipts for the raw materials,⁶⁹ but there were no dated transportation documents for raw materials used in the production of QSP, container load plans for the purchased raw materials, dated and signed receipts demonstrating receipt of such raw materials,

⁶¹ See Cumberland's CF28 Response.

⁶² See Cumberland's CF28 Request; and Cumberland's CF28 Response.

⁶³ See CF28 issued to Kat, dated November 10, 2021 (Kat's CF28 Request).

⁶⁴ See Kat's CF-28 Response, dated December 10, 2021 (Kat's Response).

⁶⁵ *Id.*

⁶⁶ *Id.*

⁶⁷ *Id.*

⁶⁸ See Kat's CF28 Request; and Kat's CF28 Response.

⁶⁹ See Kat's CF28 Response.

or packaging costs and information, which were also requested by CBP.⁷⁰ The purchase orders indicate that Ever Stone acquired, for example, [number] kgs of [number] types of [input], but there is nothing on the record to demonstrate or to tie it directly to the QSP produced and covered under entry number [number] 7803. Moreover, these raw material purchase orders and payment receipts are identical to the ones provided by Nomadic in its CF28 response. For further information, see the “Nomadic” section below. As such, CBP is unable to determine where the QSP was produced and who produced it.

Additionally, Kat submitted a “material application list,” “production formula,” slab production sheet, countertop production sheet, and a “quality checking list.”⁷¹ The slab production sheet, countertop production sheet, and “quality checking list” contain multiple fonts, added remarks, and written in dates/first names of company employees. As such, it appears that these documents were likely generated for the purpose of responding to CBP’s CF28, rather than produced during the ordinary course of business. Further, information included on Ever Stone’s timecards does not comport with all the employee information (*i.e.*, signatures and dates) listed on each of the aforementioned documents. For example, the slab production sheet contains signatures for [person] and [person] and an [date] of [date] and a [activity] of [date], but neither employee is listed as working on [date] and the timecards for [date] were not provided.⁷²

As such, there is no way to tie the information in the timecards to the overall production of QSP for entry number [number] 7803.⁷³ Further, because the production sheets list order dates and delivery times with [time] intervals spanning from [dates], there is no way to determine when and how much QSP was produced during each interval. TRLED thus does not have the information needed to tie the purchases of raw materials to the order in question, to confirm where the QSP was produced, nor to determine whether Ever Stone produced the entries in question.

Finally, CBP requested entry transaction information from Kat.⁷⁴ Of the requested entry documents, Kat submitted an invoice, packing list, packing cost information, bill of lading, Malaysian customs clearance documents, certificate of origin, and fumigation certificate. The invoice from Ever Stone to Kat lists a total amount of USD [number].⁷⁵ The bill of lading and packing list indicate that a total of [number] pieces or [number] kgs of product was shipped to Kat, but the finished production sheet and the delivery order show that Kat only ordered [number] pieces of QSP. As such, without additional information, including *e.g.*, proof of payment and a contract, there is no way to tie the information provided.

In sum, with respect to the production of QSP in Malaysia, Kat and Ever Stone did not answer many of the questions in the CF28. Further, the documentation provided did not tie information (*i.e.*, raw materials or finished QSP) to the exact amount of QSP covered under entry number [

⁷⁰ See Kat’s CF28 Request; and Kat’s CF28 Response.

⁷¹ See Kat’s CF28 Response.

⁷² *Id.*

⁷³ *Id.*

⁷⁴ See Kat’s CF28 Request.

⁷⁵ See Kat’s CF28 Response.

number]7803. With respect to entry information, Kat also did not provide many documents requested and was unable to tie the documents it did submit to entry [number]7803. Therefore, CBP is unable to determine that the country of origin of the QSP entered by Kat was Malaysia.

Nomadic

On November 10, 2021, CBP requested from Nomadic information concerning entry number [number]8097, entry date [date].⁷⁶ Nomadic submitted a timely but partial response on December 17, 2021.⁷⁷ As outlined below, Nomadic's response to the CF28 contains multiple discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in the CF28 response to determine where the imported QSP was manufactured.

Nomadic indicated the Malaysian supplier for entry [number]8097 is Ever Stone.⁷⁸ As part of its CF28 response, Nomadic provided certain information regarding the QSP production process.⁷⁹ Specifically, it submitted [number] photographs and [number] videos of Ever Stone's QSP production equipment and factory.⁸⁰ Nomadic also provided a narrative response describing the equipment used in production of QSP, the production capacity of the equipment, and the production process, as requested by CBP.⁸¹ It claims that the machines used in the production of QSP are [equipment] machine.⁸²

In terms of raw material acquisitions, Nomadic provided a partial response to the questions in the CF28. As requested, Nomadic provided raw material purchase orders for inputs that it claims were used in production of QSP. This includes [input], [input], [input], [input], [input], [input], and [input].⁸³ Each of these purchase orders is dated, [date].⁸⁴ Nomadic also provided proof of payment for each raw material, which corresponds directly to the total value listed for each raw material acquisition in each purchase order.⁸⁵ However, this documentation (*i.e.*, the raw material purchase orders and proof of payment) is the same information that Kat submitted in its CF28 response. Further, there is no explanation to account for this in either Kat's or Nomadic's reporting. As such, CBP cannot rely on this information in determining where the QSP was produced and who produced it.

Similarly, Nomadic provided commercial invoices for each of the raw material acquisitions.⁸⁶ In comparison, Kat only provided one commercial invoice for quartz sand.⁸⁷ Nomadic's and Kat's quartz sand commercial invoices list different suppliers, but are dated the same day, [date], and for the exact same values (*i.e.*, MYR [number]) and the exact same total quantities and grit

⁷⁶ See CF28 issued to Nomadic, dated November 10, 2021 (Nomadic's CF28 Request).

⁷⁷ See Nomadic's CF-28 Response, dated December 17, 2021 (Nomadic's Response).

⁷⁸ See, *e.g.*, Nomadic's Response at 2.

⁷⁹ *Id.*

⁸⁰ *Id.* at Exhibits 12 and 13.

⁸¹ See Nomadic's CF28 Request; and Nomadic's Response at 10-11.

⁸² See Nomadic's CF28 Response at Exhibit 12 and 10-11.

⁸³ *Id.* at Exhibits 4, 5, and 6, and 5-6 and 8-9.

⁸⁴ *Id.* at Exhibit 6.

⁸⁵ *Id.* at Exhibit 9.

⁸⁶ *Id.* at 4 and 6; and Exhibits 2 and 8.

⁸⁷ See Kat's CF28 Response.

variations (*i.e.*, [inputs]).⁸⁸ There is no other information on the record to demonstrate or tie these raw material purchases to the actual production of QSP for this entry. As a result, CBP also cannot rely on this information in determining origin of the QSP.

Additionally, Nomadic submitted Ever Stone's E-catalogue, a "material composition" list, "material application record," "material entry records," "slab production sheet" records, employee time sheets, and packaging costs.⁸⁹ The material entry records are all dated, [date], and the purchase orders specify the mode of delivery (*i.e.*, truck) for the raw materials.⁹⁰ However, Nomadic did not provide dated transportation documents for raw materials or container load plans from the manufacturers of the raw materials, as requested by CBP.⁹¹ In addition, the time sheets are either [description]; therefore, it is not possible to determine whether there was actual production of QSP.⁹² For this reason, it is not possible to tie the information in the time sheets to any of the information in the slab production sheets. Moreover, according to Nomadic, the time sheets "[description]," and thus, cannot be tied to the other production records.⁹³ As such, there is no documentation demonstrating that the raw materials were shipped to Ever Stone and that Ever Stone produced the QSP in question.

Nomadic provided all business information requested from CBP in its CF28 Request. According to Nomadic, it and Ever Stone are separate corporate entities that bear no relation to one another.⁹⁴ Nomadic also provided a history of Ever Stone's business and corporate officer names and information.⁹⁵ Ever Stone's business registration information lists [number], Mr. [person], as the [number] of Ever Stone.⁹⁶

Finally, CBP requested entry transaction information from Nomadic.⁹⁷ Of the requested entry documents, Nomadic provided a commercial invoice, purchase order, bill of lading, and proof of payment.⁹⁸ Additionally, Nomadic submitted a CBP 7501 entry summary form, packing list, certificate of origin, and declaration summary of exported goods.⁹⁹ The total value of goods covered by entry number [number] 8097 is listed as USD [number] in the commercial invoice.¹⁰⁰ This same total value is also listed on the purchase order and 7501 entry summary.¹⁰¹ Total quantity is listed as [number] pieces or [number] meters squared (m2) on the commercial invoice. In comparison, the same total quantities are listed on the purchase order, but the 7501

⁸⁸ See Nomadic's Response at Exhibit 8; and Kat's CF28 Response.

⁸⁹ See Nomadic's Response at 4-11; and Exhibits 3, 4, 5, 7, 10, 11 and 14.

⁹⁰ *Id.* at 5 and 6; and Exhibits 6 and 7.

⁹¹ See Nomadic's CF28 Request.

⁹² See Nomadic's CF28 Response at Exhibit 11, and 10.

⁹³ *Id.* at 10.

⁹⁴ *Id.* at 11-12.

⁹⁵ *Id.* at 11-12, and Exhibit 15.

⁹⁶ *Id.* at Exhibit 15.

⁹⁷ See Nomadic's CF28 Request.

⁹⁸ See Nomadic's Response at 12-13, and Exhibit 16.

⁹⁹ *Id.*

¹⁰⁰ *Id.*

¹⁰¹ *Id.*

entry summary lists [number] m2, rather than pieces.¹⁰² The other entry documents list the same quantity as the commercial invoice – just in a different unit of measure (*i.e.*, kgs).¹⁰³

In terms of payment information, Nomadic provided an explanation that [number] forms of payment were made, including one to an intermediary [person] for USD [number] primarily for his work as an [agent] and one issued to [person], but received by [person], who is [job title].¹⁰⁴ Nomadic claims that USD [number] was included in the first payment to [person] for the covered merchandise and the second payment covered USD [number] for the rest of the covered merchandise, both of which total the value of this QSP order (*i.e.*, USD [number]).¹⁰⁵ Nomadic did not, however, provide any other documentation generated in the course of ordinary business to substantiate the claim that part of the first payment (*i.e.*, USD [number]) was for payment of the covered merchandise or to confirm the fees charged by [person]. As such, CBP is not able to directly tie each of the claimed payment details to the documents provided.

In sum, with respect to the production of QSP in Malaysia, Nomadic and Ever Stone did not answer many of the questions in the CF28. The documentation provided did not tie information (*i.e.*, raw materials or finished QSP) to the exact amount of QSP covered under entry number [number] 8097. With respect to entry information, Nomadic provided the documents requested, but CBP is unable to tie all of the documents Nomadic submitted (*i.e.*, payment records) to entry [number] 8097. Therefore, CBP is unable to determine that the country of origin of the QSP entered by Nomadic was Malaysia.

Opaly

On November 10, 2021, CBP requested from Opaly information concerning entry number [number] 8142, entry date [date].¹⁰⁶ Opaly submitted a timely but partial response on December 10, 2021.¹⁰⁷ As outlined below, Opaly's response to the CF28 contains multiple discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in the CF28 response to determine where the imported QSP was manufactured.

Opaly indicated the Malaysian supplier for entry [number] 8142 is Ever Stone.¹⁰⁸ As part of its CF28 response, Opaly provided certain information regarding the QSP production process.¹⁰⁹ Specifically, it submitted seven photographs of what they allege are Ever Stone's QSP production equipment, but there is no narrative description of the equipment, no confirmation that there are photographs of all of Ever Stone's equipment, or any detailed explanation

¹⁰² *Id.*

¹⁰³ *Id.*

¹⁰⁴ *Id.* at 13 and Exhibit 17. TRLED further notes that Nomadic provided the names and contact information for all forwarding agents, subcontractors, and intermediaries, as request by CBP.

¹⁰⁵ *Id.*

¹⁰⁶ See CF28 issued to Opaly, dated November 10, 2021 (Opaly's CF28 Request).

¹⁰⁷ See Opaly's CF-28 Response, dated December 10, 2021 (Opaly's Response).

¹⁰⁸ *Id.*

¹⁰⁹ *Id.*

regarding Ever Stone's production capacity of each piece of equipment, as requested by CBP.¹¹⁰ Opaly, however, stated that Ever Stone can produce 20,000 m2 of QSP per year.¹¹¹

In terms of raw material acquisitions, Opaly did not answer most of the questions contained in the CF28. Specifically, the following requested information was not provided with respect to the production of the entries at issue: (a) complete production records, including raw material purchase orders, commercial invoices, transportation documents and proof of payment; (b) container load plans from each raw material manufacturer, including the dated receipt and signature of receipt for raw materials; (c) foreign customs documentation for all raw materials, if they are imported; (d) complete factory production records, including stamped timecards and work orders, as well as packaging costs and information; (e) a demonstration as to how the manufacturer ties the raw materials to the finished products, for example, a purchase order or invoice number which appears on production documents; (f) the name of the factory owner and all corporate officers.¹¹² Opaly provided a slab production sheet dated, [date], and blank or illegible timecards from October 2021. However, these two documents appear to have no relation to one another, and without further information, CBP is unable to determine where the QSP was produced and who produced it. According to Opaly, Ever Stone could not provide any additional information about raw materials because these are trade secrets and cannot be publicly disclosed.¹¹³

Similarly, Opaly explains that it has no relation to Ever Stone, and that it cannot answer CBP questions regarding the name of the factory owner, corporate officer information, and the names of the corporate officers,¹¹⁴ because this corporate office information also constitutes trade secrets.¹¹⁵ This information is thus absent from Opaly's CF28 response. As such, CBP does not possess the corporate information needed to determine the country of origin and producer of the QSP entered into the United States by Opaly.

Finally, CBP requested entry transaction information from Opaly.¹¹⁶ Of the requested entry documents, Opaly provided a *proforma* invoice, commercial invoice, certificate of origin, Malaysian customs clearance documents, and bill of lading.¹¹⁷ The commercial invoice covering entry number [number]8142 lists a total value of USD [number] and a quantity of [number] m2 of QSP.¹¹⁸ This information does not directly comport with the details listed in the bill of lading or certificate origin, which are in cubic meters (m3) and kgs.¹¹⁹ Specifically, an approximate conversion using the total m2 from the commercial invoice does not appear to equal

¹¹⁰ See Opaly's CF28 Request.

¹¹¹ See Opaly's CF28 Response.

¹¹² See Opaly's CF28 Request.

¹¹³ See Opaly's CF28 Response.

¹¹⁴ See Opaly's CF28 Request.

¹¹⁵ See Opaly's CF28 Response at Attachment 2.

¹¹⁶ See Opaly's CF28 Request.

¹¹⁷ See Opaly's CF28 Response.

¹¹⁸ *Id.*

¹¹⁹ *Id.*

the total m3 listed on the invoice.¹²⁰ There is also no invoice number listed on the commercial invoice and no packing information which would enable CBP to tie these entry documents.¹²¹

In its narrative response, Opaly stated that packing costs are included in the invoice; however, no packing information is listed on either the *proforma* or commercial invoice.¹²² Subsequently, in another portion of its narrative response, Opaly explained that the cost of packing is distributed directly to each quartz slab.¹²³ Further, Opaly did not submit a purchase order or proof of payment, as requested by CBP.¹²⁴ Opaly provided information regarding its forwarding agents, intermediaries, and subcontractors.¹²⁵

In sum, with respect to the production of QSP in Malaysia, Opaly and Ever Stone did not answer most of the questions in the CF28. Further, the documentation provided did not tie information (*i.e.*, raw materials or finished QSP) to the exact amount of QSP covered under entry number [number]8142. With respect to entry information, Opaly also did not provide most of the documents requested and was unable to tie all of the documents it submitted to entry [number]8142. Therefore, CBP is unable to determine that the country of origin of the QSP entered by Opaly was Malaysia.

Big D

On November 10, 2021, CBP requested information from Big D concerning entry number [number]8665, entry date [date], and entry number [number]3764, entry date [date].¹²⁶ Big D submitted a timely but partial response on December 12, 2021.¹²⁷ As outlined below, Big D's CF28 Response contains multiple discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in Big D's CF28 Response to determine the country of origin of its QSP entries.

Big D indicated the Malaysian manufacturer for entry [number]8665 is MSI, and the Malaysian manufacturer for entry [date]3764 is [company].¹²⁸ Big D provided no information for [company] in its CF28 response, and thus, appears to have not responded at all to CBP's requests for information for entry [number]3764.

With respect to entry [number]8665, Big D and MSI did not answer most questions contained in the CF28. Specifically, the following requested information was not provided with respect to the production of the entry at issue: (a) complete production records, including raw material purchase orders, commercial invoices, transportation documents and proof of payment; (b) container load plans from each raw material manufacturer, including the dated receipt and signature of receipt for raw materials; (c) foreign customs documentation for all raw materials, if

¹²⁰ See, e.g., buildingclub.info/calculator/m2-to-m3/. This public website for a conversion from m2 to m3.

¹²¹ *Id.*

¹²² *Id.*

¹²³ *Id.*

¹²⁴ *Id.* See also Opaly's CF28 Request.

¹²⁵ *Id.*

¹²⁶ See CF28s issued to Big D, dated November 10, 2021 (Big D's CF28 Request).

¹²⁷ See Big D's CF28 Response, dated December 12, 2021 (Big D's CF28 Response).

¹²⁸ See Big D's CF28 Response; NTAC Big D Report, dated November 3, 2021 (NTAC Big D Report).

they are imported; (d) complete factory production records, including stamped timecards and work orders, as well as packaging costs and information; (e) a demonstration as to how the manufacturer ties the raw materials to the finished products, for example, a purchase order or invoice number which appears on production documents; (f) the name of the factory owner and all corporate officers; and (g) whether the foreign producer/exporter has a relationship with Big D, and if so, whether this affects the price paid or payable.¹²⁹

The few CF28 questions concerning production Big D and MSI answered contain false information. In Big D's CF28 Response, MSI claimed that it is only a trading company, and that the manufacturer is Sanctuary Stone Sdn. Bhd. (Sanctuary Stone).¹³⁰ An examination of the website for Sanctuary Stone indicates it primarily sells natural stone, and the website contains photographs of its factory and the products it sells.¹³¹ The photographs provided by MSI to demonstrate Sanctuary Stone's production do not match those found on Sanctuary Stone's website.¹³² The purported photographs of Sanctuary Stone submitted in the CF28 response, for example, appear to be of a large, enclosed factory with space between machines, whereas Sanctuary Stone's website indicates it has a mostly open aired factory, takes up a smaller space, and does not contain the machines from the photos provided by MSI.¹³³

An internet search for the production photographs provided by MSI indicates that many of them are from a Chinese QSP company, Vemy Quartz Surface Co., Ltd. (Vemy Stone).¹³⁴ Vemy Stone operates two factories which appear to be comprised of several large buildings at each location.¹³⁵ Big D's CF28 Request solicited information on the machines used in production and their capacities, and the photographs submitted by MSI for the mixing machine, vulcanizing machine and calibrating machine may be found on Vemy Stone's website.¹³⁶ CBP notes that the name "Vemy" has been removed from some of the pieces of equipment in the photographs submitted by MSI.¹³⁷ Moreover, when asked for a manufacturing process flow chart and narrative description of the production process, MSI only submitted a list of production steps and a photograph of each step.¹³⁸ CBP notes several of the photographs accompanying these

¹²⁹ See Big D's CF28 Request.

¹³⁰ See Big D's CF28 Response.

¹³¹ See Memo to the File, "Consolidated EAPA Investigation 7657: Information Pertaining to Malaysian Exporters," dated February 8, 2022 (Malaysian Companies Memo) at "Sanctuary Stone."

¹³² See Big D's CF28 Response and the Malaysian Companies Memo at Sanctuary Stone for a comparison of the two factories and the production equipment found in each.

¹³³ See Big D's CF28 Response; Malaysian Companies Memo at Sanctuary Stone.

¹³⁴ See Malaysian Companies Memo at "Vemy Stone."

¹³⁵ Sanctuary Stone's factory and warehouse appear to be comprised of one building, which, coupled with the fact that it primarily sells natural stone and is not a producer of artificial stone, may indicate why it appears dissimilar to Vemy Stone's factories.

¹³⁶ *Id.* CBP also included larger versions of the photographs in the Malaysian Companies Memo at Vemy Stone for an easier comparison.

¹³⁷ See Big D's CF28 Response and the Malaysian Companies Memo at Vemy Stone for a comparison of the photographs.

¹³⁸ See Big D's CF28 Response.

production steps are found on Vemy Stone’s website.¹³⁹ MSI did not submit the requested narrative of the manufacturing process.¹⁴⁰

MSI stated that Sanctuary Stone is located at No. 223, Jalan 2A, KG, Baru Subang, 40150 Shah Alam, Selangor Darul Eshan, Malaysia, which is confirmed by the information CBP placed on the record of this investigation.¹⁴¹ Two of the photographs provided by MSI, which do not appear on Vemy Stone’s website, have a location stamp, of “Pelabuhan Klang,” or “Port Klang” in English.¹⁴² CBP notes Port Klang has a postal code of 42000 and is approximately 33 kilometers from Sanctuary Stone’s location, thus, these photographs provided by MSI were not taken at Sanctuary Stone because the location stamp is incorrect.¹⁴³ Moreover, these photographs appear dissimilar to those found on Sanctuary Stone’s website for the reasons noted above.¹⁴⁴

CBP obtained information from the Companies Commission of Malaysia (CCM) with respect to the following companies: LLWF, Monthong, MSI, MSW, and South Wales.¹⁴⁵ CBP finds these five companies all share a web of employees, directors, shareholders and addresses.¹⁴⁶ For example, MSI shares two addresses with MSW and Monthong, one address with LLWF, and while it shares no address with South Wales, South Wales shares two addresses with LLWF.¹⁴⁷ Jia Hui Ng is the director (or co-director) for all five companies, and Mahani Binti Asmuni is the secretary for MSW, MSI, Monthong, and LLWF.¹⁴⁸ Mr. Feng (discussed above in the “Initiation” section) is the owner of MSI and Monthong.¹⁴⁹ As these five companies are operated by the same individuals at varying addresses, and supply certain importers under investigation with QSP, CBP finds these companies act as a single entity which CBP collectively refers to as the MSW Companies.¹⁵⁰ Thus, when MSI provided information in an attempt to respond to our requests for information for entry [number]8665, those same company officials from MSI could have also provided information for entry [number]3764.

In addition, CCM data indicates the dates of incorporation of these companies. When asked how long it has been opened for business, MSI indicated it has been in operation “more than 10

¹³⁹ See Malaysian Companies Memo at Vemy Stone.

¹⁴⁰ MSI submitted a photograph of the products it produces and presumably sells to Big D; however, an image search for this photograph reveals it is from Home Depot. See Memo to the File, “Consolidated EAPA Investigation 7657: Information Pertaining to the Importers Under Investigation,” dated February 8, 2022 (U.S. Importers Memo) at “Home Depot.” There is no record evidence which indicates Big D or MSI are suppliers to Home Depot.

¹⁴¹ See Big D’s CF28 Response; Malaysian Companies Memo at Sanctuary Stone.

¹⁴² See Big D’s CF28 Response.

¹⁴³ See Malaysian Companies Memo at Sanctuary Stone for a map indicating the distance between these two locations.

¹⁴⁴ The photographs appear similar to those found on Vemy Stone’s website.

¹⁴⁵ See Malaysian Companies Memo at “Companies Commission of Malaysia” for a summary chart which indicates the various overlaps between these five companies, and the CCM reports we received for each company.

¹⁴⁶ *Id.*

¹⁴⁷ *Id.*

¹⁴⁸ *Id.*

¹⁴⁹ *Id.*

¹⁵⁰ CBP also discusses the activities of the MSW Companies in greater detail in the “Other Evidence of Evasion” section below.

years.”¹⁵¹ This statement is false. Record information from CCM indicates MSI was incorporated January 12, 2020.¹⁵²

MSI submitted a document which indicates it purchased finished goods from Sanctuary Stone.¹⁵³ The invoice from MSI to Big D is dated January 25, 2021.¹⁵⁴ However, MSI indicated it purchased QSP from Sanctuary Stone on March 19, 2021, almost two months after its sale to Big D.¹⁵⁵ Moreover, a nearly identical purchase document was submitted by MSW in Kingway’s CF28 Response.¹⁵⁶ These purchase documents appear to have undergone some minor alterations in an effort to make them appear to be different; however, there are many similarities. For example, the account number for MSI is identical to that of MSW, but the accounts have different names.¹⁵⁷ Moreover, the documents are time stamped to the identical thousandth of a second, “9:39:22,” and are both dated March 19, 2021.¹⁵⁸ In addition, the sender’s and receiver’s reference numbers are identical, as well as the monetary amounts and the message to the beneficiary.¹⁵⁹ There is nothing in MSI’s purchase document which ties it to the entry in question (*e.g.*, invoice number, purchase order number, production records, *etc.*). In sum, CBP finds this document is not responsive to the CF28 and appears to have been created in response to CBP’s request for information, rather than a document kept by MSI in the normal course of business.

MSI stated that its products are not QSP, but “agglomerated stone or artificial stone,” and provided “test results” which indicate that quartz comprises 33% of the slabs.¹⁶⁰ CBP finds several issues with the test results provided by MSI. For one, the test results do not tie to the entries in question and there is no information as to what lab conducted the tests, when the tests were conducted, or for what entity they were conducted.¹⁶¹ It also appears as though the full test results may not have been submitted as they are about a single, half page in length.¹⁶² More specifically, there are five test methods listed but only one “result.”¹⁶³ At the end of the test results a statement is made that the “Quantitative data is for reference only” which CBP interprets to mean that the test results did not rely on actual data.¹⁶⁴ These discrepancies, coupled with the fact that record information indicates Sanctuary Stone is not the producer as MSI claims, lead us to conclude MSI’s statement that this product is not QSP is untrue.

In the CF28, CBP requested that Big D provide entry transaction information, including the original commercial invoices, proof of payments, CF7501s, contracts, purchase orders, country of origin documentation, and all bills of lading. CBP noted that the proof of payment should tie

¹⁵¹ See Big D’s CF28 Response.

¹⁵² See Malaysian Companies Memo at Companies Commission of Malaysia.

¹⁵³ See Big D’s CF28 Response.

¹⁵⁴ *Id.*

¹⁵⁵ *Id.*

¹⁵⁶ See Kingway’s CF28 Response.

¹⁵⁷ See a comparison of Big D’s CF28 Response and Kingway’s CF28 Response.

¹⁵⁸ *Id.*

¹⁵⁹ *Id.*

¹⁶⁰ See Big D’s CF28 Response.

¹⁶¹ *Id.*

¹⁶² *Id.*

¹⁶³ *Id.*

¹⁶⁴ *Id.*

the invoices to the manufacturer, and if invoices are paid in bulk processing, supporting schedules noting the specific invoices and itemized bulk payment requests from the manufacturer should be provided.¹⁶⁵ Big D did not provide original commercial invoices, CF7501s, contracts or purchase orders, nor did it tie the invoice to the payment documentation.¹⁶⁶ Although Big D labeled one page as “COPY OF CONTRACT,” this page only contains part of the packing list and part of the invoice, rather than the original documents requested.¹⁶⁷ While the value listed on the invoice and bill of lading [description] that of the entry, \$[number] USD, CBP notes that about [percent] of Big D’s entries during the POI have an identical value.¹⁶⁸

In sum, with respect to the production of QSP in Malaysia, Big D and MSI did not answer most questions in the CF28, and for the few questions they answered, they provided altered photographic responses to questions, false statements in response to questions, or provided altered documents or documents simply not related to the entries in question. With respect to entry information, Big D did not provide most documents requested and was unable to tie the documents it submitted to entry [number]8665. Also, Big D provided no production information or entry documents for entry [number]3764. Therefore, based on Big D’s CF28 Response, CBP is unable to determine that the country of origin of the QSP entered by Big D was Malaysia. Although Big D’s CF28 Response does not allow us to determine the country of origin, other record evidence indicates the MSW Companies source QSP from China. This is discussed below in the “Other Evidence of Evasion” section.

Durian

On November 10, 2021, CBP requested information from Durian concerning entry number [number]2445, entry date [date].¹⁶⁹ Durian did not respond to this request for information. Durian listed its supplier for this entry as [company].¹⁷⁰ This is discussed below in the “Other Evidence of Evasion” section that record evidence indicates the MSW Companies source their QSP from China.

Flowery Stone

On November 10, 2021, CBP requested information from Flowery Stone concerning entry number [number]3343, entry date [date].¹⁷¹ Flowery Stone did not respond to this request for information. Flowery Stone listed its supplier for this entry as [company].¹⁷² This is discussed below in the “Other Evidence of Evasion” section that record evidence indicates the MSW Companies source their QSP from China.

¹⁶⁵ See Big D’s CF28 Request.

¹⁶⁶ See Big D’s CF28 Response.

¹⁶⁷ *Id.*

¹⁶⁸ *Id.*

¹⁶⁹ See CF28 issued to Durian, dated November 10, 2021.

¹⁷⁰ See NTAC Durian Report, dated November 3, 2021.

¹⁷¹ See CF28 issued to Flowery Stone, dated November 10, 2021.

¹⁷² See NTAC Flowery Stone Report, dated November 3, 2021.

Kingway

On November 11, 2021, CBP requested information from Kingway concerning entry number [number]0564, entry date [date].¹⁷³ Kingway submitted a timely but partial response on December 28, 2021.¹⁷⁴ As outlined below, Kingway's CF28 Response contains multiple discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in Kingway's CF28 Response to determine the country of origin of its QSP entries.

Kingway indicated the Malaysian manufacturer for entry [number]0564 is MSW.¹⁷⁵

Kingway and MSW did not answer most questions contained in the CF28. Specifically, the following requested information was not provided with respect to the production of the entry at issue: (a) complete production records, including raw material purchase orders, commercial invoices, transportation documents and proof of payment; (b) container load plans from each raw material manufacturer, including the dated receipt and signature of receipt for raw materials; (c) foreign customs documentation for all raw materials, if they are imported; (d) complete factory production records, including stamped timecards and work orders, as well as packaging costs and information; (e) a demonstration as to how the manufacturer ties the raw materials to the finished products, for example, a purchase order or invoice number which appears on production documents; (f) the name of the factory owner and all corporate officers; and (g) whether the foreign producer/exporter has a relationship with Kingway, and if so, whether this affects the price paid or payable.¹⁷⁶

The few CF28 questions concerning production that Kingway and MSW answered contain false information. In Kingway's CF28 Response, MSW claimed that it is only a trading company, and that the manufacturer is Sanctuary Stone.¹⁷⁷ MSW submitted production information identical to that of MSI in Big D's CF28 Response. As discussed above, the record evidence concerning Sanctuary Stone indicates it primarily sells natural stone, its factory looks dissimilar to the factory photographs provided by MSW, and the photographs supplied are from a Chinese QSP producer, Vemy Stone.¹⁷⁸ Like Big D's CF28 Response, the name "Vemy" has been removed from some of the pieces of equipment in the photographs submitted by MSW.¹⁷⁹ When asked for a manufacturing process flow chart and narrative description of the production process, MSW only submitted a list of production steps and a photograph of each step, several of which appear on Vemy Stone's website, and did not submit the requested narrative of the manufacturing process.¹⁸⁰ Moreover, several of the photographs of the production process submitted by MSW

¹⁷³ See CF28 issued to Kingway, dated November 22 and 29, 2021 (Kingway's CF28 Request).

¹⁷⁴ See Kingway's CF28 Response, dated December 28, 2021 (Kingway's CF28 Response).

¹⁷⁵ See Kingway's CF28 Response; NTAC Kingway Report, dated November 3, 2021 (NTAC Kingway Report).

¹⁷⁶ See Kingway's CF28 Request.

¹⁷⁷ See Kingway's CF28 Response.

¹⁷⁸ See Malaysian Companies Memo at Sanctuary Stone and Vemy Stone.

¹⁷⁹ See Kingway's CF28 Response and the Malaysian Companies Memo at Vemy Stone for a comparison of the photographs.

¹⁸⁰ See Malaysian Companies Memo at Vemy Stone.

are location stamped at a location which is not Sanctuary Stone's location, which is also discussed above.¹⁸¹

CBP obtained information from the CCM for the MSW Companies.¹⁸² These five companies all share a web of employees, directors, shareholders, and addresses, and as they are operated by the same individuals at varying addresses, and all supply certain importers under investigation with QSP, CBP finds the MSW Companies act as a single entity.¹⁸³ CCM data indicates the dates of incorporation of these companies. When asked how long it has been opened for business, MSW indicated it has been in operation "more than 10 years."¹⁸⁴ This statement is false. Record information from CCM indicates MSW was incorporated December 20, 2019.¹⁸⁵ MSW also indicated its owner is Chong Wen How.¹⁸⁶ This is another false statement because the owner of MSW is Mr. Huang.¹⁸⁷

MSW submitted a document which indicates it purchased finished goods from Sanctuary Stone.¹⁸⁸ The invoice from MSW to Kingway is dated February 15, 2021.¹⁸⁹ However, MSW indicated it purchased QSP from Sanctuary Stone on March 19, 2021, over a month after the sale to Kingway.¹⁹⁰ As such, CBP finds this document is not responsive to the CF28. Moreover, a nearly identical purchase document was submitted by MSI in Big D's CF28 Response.¹⁹¹ These purchase documents appear to have undergone some minor alterations to make them appear to be different; however, there are many similarities. For example, the account number for MSW is identical to that of MSI, but the accounts have different names.¹⁹² Moreover, the documents are time stamped to the identical thousandth of a second, "9:39:22," and are both dated March 19, 2021.¹⁹³ In addition, the sender's and receiver's reference numbers are identical, as well as the monetary amounts and the message to the beneficiary.¹⁹⁴ There is nothing in MSW's purchase document which ties it to the entry in question (e.g., invoice number, purchase order number, production records, *etc.*). In sum, CBP finds this document is not responsive to the CF28 and appears to have been created in response to CBP's request for information, rather than a document kept by MSW in the normal course of business.

In the CF28, CBP requested that Kingway provide entry transaction information including the original commercial invoices, proof of payments, CF7501s, contracts, purchase orders, country of origin documentation, and all bills of lading. CBP noted that the proof of payment should tie

¹⁸¹ See Malaysian Companies Memo at Sanctuary Stone for a map indicating the distance between these two locations. This is also discussed in the "Big D" section above.

¹⁸² See Malaysian Companies Memo at Companies Commission of Malaysia for a summary chart which indicates the various overlaps between these five companies and the reports we received for each company.

¹⁸³ *Id.*

¹⁸⁴ See Kingway's CF28 Response.

¹⁸⁵ See Malaysian Companies Memo at Companies Commission of Malaysia.

¹⁸⁶ See Kingway's CF28 Response.

¹⁸⁷ See Malaysian Companies Memo at Companies Commission of Malaysia.

¹⁸⁸ See Kingway's CF28 Response.

¹⁸⁹ *Id.*

¹⁹⁰ *Id.*

¹⁹¹ See Big D's CF28 Response.

¹⁹² See a comparison of Big D's CF28 Response and Kingway's CF28 Response.

¹⁹³ *Id.*

¹⁹⁴ *Id.*

the invoices to the manufacturer, and if invoices are paid in bulk processing, supporting schedules noting the specific invoices and itemized bulk payment requests from the manufacturer should be provided.¹⁹⁵ Kingway did not provide original commercial invoices, CF7501s, or contracts.¹⁹⁶ Kingway submitted part of the packing list and part of the invoice, rather than the original documents requested.¹⁹⁷ Although Kingway labeled one page as “COPY OF CONTRACT,” this page only contains part of the packing list and part of the invoice, rather than the original documents requested.¹⁹⁸

In sum, with respect to the production of QSP in Malaysia, Kingway and MSW did not answer most questions in the CF28 and for some of the questions they attempted to answer they provided altered photographic responses to questions, untrue statements in response to questions, or did not provide the requested documents. With respect to entry information, Kingway did not provide most documents requested and was unable to tie some of the documents it did submit to entry [number]0564. Therefore, based on Kingway’s CF28 Response, CBP is unable to determine that the country of origin of the QSP entered by Kingway was Malaysia. Although Kingway’s CF28 Response does not allow us to determine the country of origin, other record evidence indicates the MSW Companies source QSP from China. This is discussed this below in the “Other Evidence of Evasion” section.

Nio

On November 22, 2021, CBP requested information from Nio concerning entry number [number]8463, entry date [date], and on November 29, 2021, requested information concerning entry number [number]3887, entry date [date].¹⁹⁹ Nio submitted a timely but partial response on December 28, 2021.²⁰⁰ As outlined below, Nio’s CF28 Response contains multiple discrepancies and is not complete. Therefore, TRLED is unable to rely on the information contained in Nio’s CF28 Response to determine the country of origin of its QSP entries.

Nio indicated the Malaysian manufacturer for entry [number]8463 is [company], and the Malaysian manufacturer for entry [number]3887 is Monthong.²⁰¹ Nio provided no information for [company] in its CF28 response, and thus, appears to have not responded at all to CBP’s requests for information for entry [number]8463.

With respect to entry [number]3887, Nio and Monthong did not answer most questions contained in the CF28. Specifically, the following requested information was not provided with respect to the production of the entry at issue: (a) complete production records, including raw material purchase orders, commercial invoices, transportation documents and proof of payment; (b) container load plans from each raw material manufacturer, including the dated receipt and signature of receipt for raw materials; (c) foreign customs documentation for all raw materials, if they are imported; (d) complete factory production records, including stamped timecards and

¹⁹⁵ See Kingway’s CF28 Request.

¹⁹⁶ See Kingway’s CF28 Response.

¹⁹⁷ *Id.*

¹⁹⁸ *Id.*

¹⁹⁹ See CF28s issued to Nio, dated November 22 and 29, 2021 (Nio’s CF28 Request).

²⁰⁰ See Nio’s CF28 Response, dated December 28, 2021 (Nio’s CF28 Response).

²⁰¹ See Nio’s CF28 Response; NTAC Nio Report, dated November 3, 2021 (NTAC Nio Report).

work orders, as well as packaging costs and information; (e) a demonstration as to how the manufacturer ties the raw materials to the finished products, for example, a purchase order or invoice number which appears on production documents; (f) the name of the factory owner and all corporate officers; and (g) whether the foreign producer/exporter has a relationship with Nio, and if so, whether this affects the price paid or payable.²⁰²

The few CF28 questions concerning production that Nio and Monthong answered contain false information. In Nio's CF28 Response, Monthong claimed that it is only a trading company and that the manufacturer is Sanctuary Stone.²⁰³ Monthong submitted production information identical to that of MSI in Big D's CF28 Response.²⁰⁴ CBP discussed above how record evidence concerning Sanctuary Stone indicates it primarily sells natural stone, how its factory looks dissimilar to the factory photographs provided by Monthong, and that the photographs supplied are from a Chinese QSP producer, Vemy Stone.²⁰⁵ Like Big D's CF28 Response, the name "Vemy" has been removed from some of the pieces of equipment in the photographs submitted by Monthong.²⁰⁶ When asked for a manufacturing process flow chart and narrative description of the production process, Monthong only submitted a list of production steps and a photograph of each step, several of which appear on Vemy Stone's website, and did not submit the requested narrative of the manufacturing process.²⁰⁷ Moreover, several of the photographs of the production process submitted by Monthong are location stamped at a location which is not Sanctuary Stone's location, which is also discussed above.²⁰⁸

CBP obtained information from the CCM for the MSW Companies.²⁰⁹ These five companies all share a web of employees, directors, shareholders, and addresses.²¹⁰ Mr. Feng is the owner of MSI and Monthong, as well as Nio.²¹¹ As the MSW Companies are operated by the same individuals at varying addresses, and all supply certain importers under investigation with QSP, CBP finds these companies act as a single entity. Thus, while Monthong only provided information to respond to CBP requests for information for entry [number]3887, those same company officials from Monthong could have also provided information for entry [number]8463.

CCM data indicates the dates of incorporation of these companies. When asked how long it has been opened for business, Monthong indicated it has been in operation "more than 5 years."²¹² This statement is false. Record information from CCM indicates Monthong was incorporated

²⁰² See Nio's CF28 Request.

²⁰³ See Nio's CF28 Response.

²⁰⁴ See Nio's CF28 Response and Big D's CF28 response for a comparison.

²⁰⁵ See Malaysian Companies Memo at Sanctuary Stone and Vemy Stone.

²⁰⁶ See Nio's CF28 Response and the Malaysian Companies Memo at Vemy Stone for a comparison of the photographs.

²⁰⁷ *Id.*

²⁰⁸ See Malaysian Companies Memo at Sanctuary Stone for a map indicating the distance between these two locations. This is also discussed in the "Big D" section above.

²⁰⁹ See Malaysian Companies Memo at Companies Commission of Malaysia for a summary chart which indicates the various overlaps between these five companies and the reports we received for each company.

²¹⁰ *Id.*

²¹¹ *Id.*; Nio Allegation at Exhibit 4.

²¹² See Nio's CF28 Response.

January 12, 2020.²¹³ Monthong also indicated its owner is Su Yifang.²¹⁴ This is another false statement because the owner of Monthong, as well as Nio, is Mr. Feng.²¹⁵

Monthong submitted a document which indicates it purchased finished goods from Sanctuary Stone.²¹⁶ The invoice from Monthong to Nio is dated August 5, 2021.²¹⁷ However, Monthong indicated it purchased QSP from Sanctuary Stone on September 19, 2021, over a month after Monthong's sale to Nio.²¹⁸ There is nothing in Monthong's purchase document which ties it to the entry in question (*e.g.*, invoice number, purchase order number, production records, *etc.*). As such, CBP finds this document is not responsive to the CF28.

Monthong stated that its products are not QSP, but "agglomerated stone or artificial stone," and provided "test results" which indicate that quartz comprises 33% of the slabs.²¹⁹ CBP finds several issues with the test results provided by Monthong. For one, the test results do not tie to the entries in question, and there is no information as to what lab conducted the tests, when the tests were conducted, or for what entity they were conducted.²²⁰ It also appears as though the full test results may not have been submitted as they are about a single half page in length.²²¹ More specifically, there are five test methods listed but only one "result."²²² At the end of the test results a statement is made that the "Quantitative data is for reference only" which CBP interprets to mean that the test results did not rely on actual data.²²³ These discrepancies, coupled with the fact that record information indicates Sanctuary Stone is not the producer as Monthong claims, leads CBP to conclude Monthong's statement that this product is not QSP is untrue.

In the CF28, CBP requested that Nio provide entry transaction information including the original commercial invoices, proof of payments, CF7501s, contracts, purchase orders, country of origin documentation, and all bills of lading. CBP noted that the proof of payment should tie the invoices to the manufacturer, and if invoices are paid in bulk processing, supporting schedules noting the specific invoices and itemized bulk payment requests from the manufacturer should be provided.²²⁴ As discussed below, not all of the information Nio provided ties to the entries in question.

Nio did not provide original commercial invoices, CF7501s, or contracts.²²⁵ Nio submitted part of the packing list and part of the invoice, rather than the original documents requested.²²⁶ Some of the documents submitted by Nio appear to be related to different sales. For example, the

²¹³ See Malaysian Companies Memo at Companies Commission of Malaysia.

²¹⁴ See Nio's CF28 Response.

²¹⁵ See Malaysian Companies Memo at Companies Commission of Malaysia; Nio Allegation at Exhibit 4.

²¹⁶ See Nio's CF28 Response.

²¹⁷ *Id.*

²¹⁸ *Id.*

²¹⁹ *Id.*

²²⁰ *Id.*

²²¹ *Id.*

²²² *Id.*

²²³ *Id.*

²²⁴ See Nio's CF28 Request.

²²⁵ See Nio's CF28 Response.

²²⁶ *Id.*

invoice and packing list are dated August 5, 2021, whereas the purchase order, which normally precedes the invoice, is dated August 20, 2021, 15 days after the invoice.²²⁷ The invoice ties to the payment from Nio to Monthong, and the value ties to entry [number]3887.²²⁸

In sum, with respect to the production of QSP in Malaysia, Nio and Monthong did not answer most questions in the CF28 and for some of the questions they attempted to answer they provided altered photographic responses to questions, untrue statements in response to questions, or did not provide the requested documents. With respect to entry information, Nio did not provide most documents requested and was unable to tie some of the documents it submitted to entry [number]3887. Also, Nio provided no production information or entry documents for entry [number]8463. Therefore, based on Nio's CF28 Response, CBP is unable to determine that the country of origin of the QSP entered by Nio was Malaysia. Although Nio's CF28 Response does not allow CBP to determine the country of origin, other record evidence indicates the MSW Companies source QSP from China. This is discussed below in the "Other Evidence of Evasion" section.

Other Evidence of Evasion

a. Shenzhen Ark Cross-Border Logistics Co., Ltd.

Record evidence indicates Shenzhen Ark Cross-Border Logistics Co., Ltd. (Ark Trans) coordinates with and/or controls the MSW Companies and certain importers under investigation, *i.e.*, Big D, Durian, Flowery Stone and Nio, and their DBAs. In addition to the evasion scheme discussed in the Allegations with respect to the MSW Companies, record evidence indicates Ark Trans is involved in an evasion scheme with respect to additional Malaysian and Chinese companies to evade AD/CVD duties.

Ark Trans is a freight forwarder specializing in helping Chinese companies to avoid AD/CVD duties.²²⁹ According to the Ark Trans' website, under the "Company Culture" section, it states:

Our {A}rk {L}ogistics took 20 {y}ears of logistics experience in China and the United States, in the face of the anti-dumping trade barriers established by the United States against China, many domestic factories are struggling in this crisis, Ark Logistics also carries the expectations of many domestic manufacturers, bypassing the anti-dumping review of the United States, and finally successfully delivered the goods to the other side of the ocean.²³⁰

On its website, Ark Trans repeatedly uses the word "re-export" as a euphemism for transshipment or duty evasion, and also notes that one of its specialties is the "re-export" of Chinese-origin QSP from Malaysia. On its website, Ark Trans states that the company:

²²⁷ *Id.*

²²⁸ *Id.*

²²⁹ See Malaysian Companies Memo at "Ark Trans."

²³⁰ *Id.*

- provides various comprehensive international freight solutions to a number of well-known foreign trade companies involved in QSP, as well as wooden cabinets, mattresses, aluminum, *etc.*;
- has warehouses and factories in Malaysia which offer transshipment services that include a certificate of origin and delivery to the United States;
- partners with local Malaysian companies to import QSP into Malaysia, and then carefully repackages the QSP for re-export;²³¹ and,
- stated under the “Company News” section that it is committed to focusing on re-export services for QSP and wooden cabinets from Malaysia.²³²

The contact page for Ark Trans lists an email address, danny@ark-trans.com, and phone number, 18607668898, for “Manager Huang.”²³³ Record evidence indicates this phone number is also the phone number for a Chinese QSP producer, Guangdong Yuanjing Stone Co., Ltd. (Guangdong Yuanjing).²³⁴ Guangdong Yuanjing’s website, and its listing on a commercial website, indicate the contact person for the company is Huang Jianmin, at 18607668898, *i.e.*, the same Mr. Huang discussed in the Allegations who, according to CCM data, is the owner of MSW.²³⁵ Guangdong Yuanjing provided photographs of its production facility on a commercial website; however, the sign on the factory states the company is “Evian Stone.”²³⁶ Furthermore, record information indicates that Guangdong Yuanjing is located at the same address as Evian Stone Co., Ltd. (Evian Stone), specifically, No. 2, Area A, Shishi Village, Liudu Town, Yunan District, Yunfu City, Guangdong Province, China.²³⁷

Evian Stone is also a Chinese QSP producer.²³⁸ Social media posts indicate that the managing director/CEO of Evian Stone is Danny Huang.²³⁹ One of Mr. Huang’s social media accounts indicates that his user name is [company name].²⁴⁰ CBP finds it highly likely that Mr. Huang and Danny Huang are the same person, and that the Ark Trans’ contact email, danny@ark-trans.com, is an email address for Mr. Huang. As such, Mr. Huang is the manager and contact person for Ark Trans and is intimately involved with Chinese QSP producers Guangdong Yuanjing and Evian Stone. In addition, one of Mr. Feng’s email addresses is evianstone@qq.com. In the allegations, Mr. Feng [title].²⁴¹ As the CEO of Evian Stone, Mr. Huang would indeed be the [title] of Mr. Feng.

Mr. Huang is also the owner and co-director of MSW.²⁴² Mr. Feng is the owner of MSI and Monthong. As discussed above, the MSW Companies all share a variety of addresses,

²³¹ In the “quartz stone cabinet board” (quartz slab) section of its website, Ark Trans provides photographs of its personnel carefully unloading Chinese-origin QSP slabs for eventual re-export.

²³² *Id.*

²³³ *Id.*

²³⁴ See Malaysian Companies Memo at “Guangdong Yuanjing.”

²³⁵ *Id.*

²³⁶ *Id.* While we do not have an address for Evian Stone, CBP notes it is located in the same village as Guangdong Yuanjing,

²³⁷ See Malaysian Companies Memo at Guangdong Yuanjing and “Evian Stone.”

²³⁸ See Malaysian Companies Memo at Evian Stone.

²³⁹ *Id.*

²⁴⁰ See, e.g., Durian Allegation at Exhibit 5. In the Allegations, [person engaged in an activity].” *Id.*

²⁴¹ See, e.g., Durian Allegation at Exhibit 5.

²⁴² See Malaysian Companies Memo at Companies Commission of Malaysia.

employees, and managers.²⁴³ When Ark Trans states it has warehouses and factories, and that it partners with Malaysian companies to transship Chinese-origin QSP, it seems highly likely that some of the companies Ark Trans is referring to are the MSW Companies. While CBP does not know the universe of Malaysian companies Ark Trans works with in its evasion schemes, it seems likely that they would include the MSW Companies, which Mr. Huang directs.

The record contains documents for several POI entries of QSP, and a possible entry of kitchen cabinets.²⁴⁴ CBP notes that the invoices issued by MSW, MSI and Monthong for these entries contain invoice numbers which begin with the word “ARK.”²⁴⁵ The use of the word “ARK” for invoices issued by the MSW Companies indicates both coordination between the MSW Companies, *i.e.*, they share an invoice numbering process, and a link to Ark Trans. In the “Country of Origin Information for the MSW Companies” section below, CBP notes how it appears that Ark Trans and the MSW Companies may have a coordinated invoicing scheme.

CBP placed trade data on the record which indicates an additional link between Ark Trans and the MSW companies.²⁴⁶ Ark Trans issues [document or activity] for certain [items] by the MSW companies to the United States.²⁴⁷ For other [items] the MSW Companies are [activity], and those [document] can begin with [alphanumeric code] as well.²⁴⁸ While this trade data does not encompass the universe of POI shipments, and nor is it meant to, the data demonstrates additional coordination between Ark Trans and the MSW Companies. Moreover, CBP finds that record information indicates that for certain entries the bill of lading number and invoice number are identical. For example, entry [number]4463 has an invoice number and bill of lading number which are both ARKT2108002B.²⁴⁹ This example, and the trade data, are indications of further coordination by the MSW Companies and Ark Trans.

Given Mr. Huang’s positions at Ark Trans and the MSW Companies, and the coordination between Ark Trans and the MSW Companies with respect to shipments between Malaysia and the United States, CBP finds that Ark Trans coordinates and/or controls the MSW Companies in its transshipment schemes.

Record evidence indicates there are links between Ark Trans and the MSW Companies to importers Big D, Durian, Flowery Stone, and Nio, and their DBAs Artist Kitchen and Stone Inc. (Artist Kitchen), MS Stone and Nio Home Depot. Mr. Feng is the owner of two of the MSW Companies, MSI and Monthong.²⁵⁰ In the Allegations, Mr. Feng [title]. Mr. Feng is also the owner of Nio and the contact person for [company].²⁵¹ The owner/contact for Big D and

²⁴³ *Id.*

²⁴⁴ See U.S. Importers Memo at “Re-exported Entries;” *see also* Nio’s CF28 Response and Flowery Stone’s CF28 Response.

²⁴⁵ See, *e.g.*, Nio’s CF28 Response. See also U.S. Importers Memo at Re-exported Entries. While the invoice for Kingway states the invoice number begins with “[alphanumeric code],” according to the bill of lading and payment document, the invoice begins with “[alphanumeric code].” See Kingway’s CF28 Response.

²⁴⁶ See Malaysian Companies Memo at Ark Trans.

²⁴⁷ *Id.*

²⁴⁸ *Id.*

²⁴⁹ See U.S. Importers Memo at Re-exported Entries.

²⁵⁰ See Malaysian Companies Memo at Companies Commission of Malaysia.

²⁵¹ See Nio Allegation at Exhibit 4; U.S. Importers Memo at “Identifier Information.”

Flowery Stone is [name].²⁵² The owner of Durian is Gefeng Li, [title].²⁵³

Nio's address is 17800 Castleton St., Ste 665, City of Industry, CA 91748.²⁵⁴ This is also the address for Durian,²⁵⁵ and one of the addresses for [company].²⁵⁶ Artist Kitchen, MS Stone and Nio Home Depot all share an address at 90 State St, Suite 700, Office 40, Albany, NY 12207.²⁵⁷

[company], Flowery Stone, Nio and [company] also share an email address, ARKLUSA@vip.sina.com.²⁵⁸ CBP notes that Sina.com is a Chinese based email provider, and the word "ARK" appears in the importers' email address.²⁵⁹ MS Stone's contact email address is OP5@ARK-TRANS.COM.²⁶⁰ An examination of the webpages of Ark Trans, and Mr. Huang's Ark Trans email address, indicate that its domain name is "ark-trans.com."²⁶¹ As such, MS Stone's email address is a direct link to Ark Trans. Nio Home Depot has a second email address which is evianstone@qq.com.²⁶² As discussed above, Evian Stone is a Chinese QSP producer, and the CEO is Mr. Huang. MS Stone's second email address is msi.building.supply@gmail.com, which is a direct link to the MSW Companies.²⁶³

In addition to addresses and email addresses, these companies also share a phone number. The phone number for Flowery Stone, Nio, Nio Home Depot, and MS Stone is 949-247-1243.²⁶⁴ Therefore, Big D, Durian, Flowery Stone, and Nio, and their DBAs Artist Kitchen, MS Stone and Nio Home Depot all share either an address, owner/contact, phone number or email, or some combination of these four identifiers; therefore, they are linked to one another, and linked to Ark Trans and the MSW Companies.

Given the links and coordination between Ark Trans, the MSW Companies and the importers Big D, Durian, Flowery Stone, and Nio, and their DBAs, with respect to shipments between Malaysia and the United States, CBP finds that Ark Trans coordinates and/or controls these importers in its transshipment schemes.

b. Agrostone and Changing Trade Patterns

Ark Trans appears to have shifted its evasion scheme away from the MSW Companies and now appears to be using Agrostone, or its affiliates, as suppliers for Chinese-origin QSP.

²⁵² See U.S. Importers Memo at Identifier Information.

²⁵³ *Id.*

²⁵⁴ *Id.*

²⁵⁵ See Durian Allegation at Exhibit 4.

²⁵⁶ See U.S. Importers Memo at Identifier Information.

²⁵⁷ See U.S. Importers Memo at "Incorporation Documents."

²⁵⁸ See U.S. Importers Memo at Identifier Information.

²⁵⁹ See U.S. Importers Memo at "Sina.com."

²⁶⁰ See U.S. Importers Memo at Identifier Information.

²⁶¹ See Malaysian Companies Memo at Ark Trans.

²⁶² See U.S. Importers Memo at Identifier Information.

²⁶³ *Id.*

²⁶⁴ See U.S. Importers Memo at Identifier Information.

Agrostone is a Malaysian exporter and producer of QSP.²⁶⁵ Agrostone is owned by a Chinese company, Linfair Agrostone Co., Ltd., which is a producer of synthetic stone such as QSP.²⁶⁶ Agrostone is also affiliated with two additional producers of QSP, Karina Stone (Malaysia) Sdn. Bhd. (Karina Stone) and Foshan Karina Building Material Co., Ltd. (Foshan Karina).²⁶⁷ The Karina companies share a logo and indicate they are affiliates of Agrostone, with the Malaysian company indicating it is a “sub brand” of Agrostone.²⁶⁸ Record evidence indicates Foshan Karina and Foshan Horo Import and Export Co., (Foshan Horo) share an address at Building 7, Tianan Center, 31 Jihua Rd., Foshan City.²⁶⁹ Foshan Karina’s sales manager, Erica Zheng, is the company contact for international sales for Foshan Marianna Building Materials Co., Ltd. (Foshan Marianna).²⁷⁰ In sum, Agrostone is affiliated with Karina Stone and Foshan Karina, and appears to be related to Foshan Horo and Foshan Marianna.

CBP placed import statistics for Agrostone [name] on the record of this investigation.²⁷¹ An examination of this data indicates that in [year] Agrostone imported large amounts of [inputs] from [country]. Specifically, Agrostone imported [inputs].²⁷² Agrostone also imported [finished product].²⁷³ However, in [year], Agrostone imported [finished product], and [inputs].²⁷⁴ An examination of Agrostone’s [companies] indicates that these companies either [activity] or are [activity].²⁷⁵ As such, Agrostone appears to have changed its business model from that of a company [activity] to that of a company which [activity].

Yunfu Wintop Stone Co., Ltd. (Yunfu Wintop) is a Chinese producer of QSP.²⁷⁶ According to Yunfu Wintop’s website, it only sells QSP and lists its five product categories as “quartz slabs, quartz counter tops, quartz bathroom panels, quartz vanity tops and quartz bar tops.”²⁷⁷

Durian, Flowery Stone, and Nio have changed their importation practices to avoid AD/CVD duties. CBP data indicates these companies [activity] from the MSW Companies when CBP requested information from them concerning the country of origin of their entries.²⁷⁸ The following chart indicates the [item] Durian, Flowery Stone, and Nio made from the MSW Companies.

²⁶⁵ See Malaysian Companies Memo at “Agrostone.”

²⁶⁶ *Id.*

²⁶⁷ *Id.*

²⁶⁸ *Id.*

²⁶⁹ *Id.*

²⁷⁰ *Id.*

²⁷¹ *Id.*

²⁷² *Id.*

²⁷³ *Id.*

²⁷⁴ *Id.*

²⁷⁵ *Id.*

²⁷⁶ See Malaysian Companies Memo at “Yunfu Wintop.”

²⁷⁷ *Id.*

²⁷⁸ See U.S. Importers Memo at “Last Entries.”

Entry Date	Importer	Manufacturer
date	company	company
date	company	company
date	company	company

The entries for Durian and Nio end [time frame] CBP issued CF28s in this investigation.²⁷⁹ Flowery Stone's entries end [time frame], but this appears to coincide with [activity] Flowery Stone's entries which started in [date].²⁸⁰ Flowery Stone's entries [activity] approximately [time frame] those activities began.²⁸¹

Rather than ceasing the importation of Chinese-origin QSP, these importers appear to have [behavior change]. For example, Nio had a shipment that [activity] in the United States, [number], and [company] was the named manufacturer.²⁸² This shipment was [behavior change] to indicate that the importer was [company] and the manufacturer was [company].²⁸³ We also note that the company that issued the bill of lading was [company].²⁸⁴ As noted above, MS Stone's email address is an Ark Trans email address. While entries for Durian, Flowery Stone and Nio [behavior change], CBP notes MS Stone was incorporated October 3, 2021, which is shortly after CBP began to request [documents] in September.²⁸⁵ MS Stone's entries begin in [date] and have [date].²⁸⁶

With respect to Nio Home Depot, its first entry of QSP was on [date].²⁸⁷ The manufacturer for Nio Home Depot's entries is [company], a Chinese producer of QSP.²⁸⁸ Although Nio Home Depot has indicated that its [company] are [type], *i.e.*, [description], Ark Trans is the entity which issued [documents] for many of Nio Home Depot's [company]. CBP also notes Nio Home Depot's email address is linked to [company]. Given Ark Trans' statements with respect to duty evasion, and the fact that [company] appears to only [activity], CBP finds it likely that Nio Home Depot's entries should have been entered as [type].

With respect to Artist Stone, CBP notes that the listed manufacturers of its entries are [companies].²⁸⁹ While [company] is not listed as a manufacturer, companies affiliated or related to [company] are listed as the manufacturers. Artist Kitchen has indicated that most of its entries are HTS [numbers] and entered them as [type] entries, *i.e.*, [type]. However, given Ark Trans' and certain importers' recent shift to sourcing QSP from [company], CBP finds it likely that

²⁷⁹ See NTAC Report Durian; NTAC Report Nio.

²⁸⁰ See NTAC Report Flowery Stone; U.S. Importers Memo at Re-exported Entries.

²⁸¹ See NTAC Report Flowery Stone.

²⁸² See Malaysian Companies Memo at Agrostone.

²⁸³ *Id.*

²⁸⁴ *Id.*

²⁸⁵ See U.S. Importers Memo at Re-exported Entries and Incorporation Documents.

²⁸⁶ See MS Stone NTAC Report.

²⁸⁷ See NTAC Nio Home Depot Report, dated February 1, 2022.

²⁸⁸ *Id.*

²⁸⁹ See NTAC Artist Kitchen Report, dated February 1, 2022 (NTAC Artist Kitchen Report); U.S. Importers Memo at "Artist Kitchen."

Artist Kitchen’s entries may be [activity], or [activity] that should have been declared as [type] entries.²⁹⁰

c. Ivy Zhang

Additional record information indicates the MSW Companies source QSP from China. Ivy Zhang (Ms. Zhang) indicated on social media platforms that she is the sales manager at Xiamen Laituosi Building Materials Co., Ltd. (Xiamen Laituosi), a Chinese producer of QSP.²⁹¹ Her social media page indicates she has a Xiamen Laituosi email address (*i.e.*, an email address ending in “ltsstone” which is Xiamen Laituosi’s domain name).²⁹² Xiamen Laituosi’s social media page indicates its contact information (*i.e.*, email and WhatsApp) is the same as Ms. Zhang’s contact information.²⁹³

Social media posts also indicate Ms. Zhang is a “manager” and “quartz export manager” for MSW.²⁹⁴ Social media posts by Ms. Zhang also indicate she is involved in the export of Chinese QSP from Malaysia. For example, her posts contain many hashtags indicating the country of origin is China and also indicating they can be shipped from Guangdong through Malaysia to the United States “without high tariffs.”²⁹⁵ In one social media post Ms. Zhang states:

Hello, This is Ivy from Malaysia, a QUARTZ export MANAGER at MSW BUILDING SUPPLY SDN. BHD. We are a professional quartz surfacing manufacturer and fabricator, 100 hectares manufacturing area, equipped with 12 automatic quartz slab production line and “state-of-the-art” machinery.²⁹⁶

However, in various CF28 responses, members of the MSW Companies indicated they had no production capacity, rather they are trading companies which purchase the QSP they sell.²⁹⁷ An examination of Xiamen Laituosi’s website indicates that, in fact, its “production base has about 100 hectares manufacturing area, equipped with 12 automatic quartz slab production line and “state-of-the-art” machinery.”²⁹⁸ In sum, record evidence indicates that one of the sources of the MSW Companies’ QSP is Xiamen Laituosi, a Chinese QSP producer.

d. Country of Origin Information for the MSW Companies

CBP requested information concerning the country of origin for several entries by Flowery Stone and Nio purportedly manufactured by the MSW Companies. Flowery Stone and Nio provided

²⁹⁰ *Id.*

²⁹¹ See Malaysian Companies Memo at “Xiamen Laituosi.” Ms. Zhang refers to herself in different social media posts as a “professional quartz stone supplier” and “quartz stone export manager” for Xiamen Laituosi. *Id.*

²⁹² *Id.*

²⁹³ *Id.* Social media posts indicate that Ms. Zhang also recently worked for Fabulous Group (Xiamen) Co., Ltd., which is a group of companies engaged in QSP production. Although one social media post indicates she recently left this company.

²⁹⁴ *Id.* CBP notes Ms. Zhang appears to have scrubbed her social media posts of any mention of MSW around the time the CF28s were issued to the Importers under investigation.

²⁹⁵ *Id.*

²⁹⁶ See Malaysian Companies Memo at Xiamen Laituosi.

²⁹⁷ See Big D’s CF28 Response; Kingway’s CF28 Response; and Nio’s CF28 Response.

²⁹⁸ See Malaysian Companies Memo at Xiamen Laituosi.

some entry and production information but re-exported each of these entries rather than provide further country of origin documentation. The documentation submitted by the MSW Companies, Flowery Stone and Nio are consistent with other documentation on the record in the sense that these companies have attempted to conceal the country of origin of their entries. CBP discusses the information collected by CBP for each entry below.

Entry [number]3721

Flowery Stone did not respond to its CF28; however, it provided some entry and production documents for entry [number]3721.²⁹⁹ For this entry, MSW is listed as the manufacturer of the QSP entered by Flowery Stone.³⁰⁰ Flowery Stone provided a brochure from MSW. In contrast to the various CF28 responses, where members of the MSW Companies stated they had no production facilities, MSW's brochure states:

MSW BUILDING SUPPLY SDN.BHD. is located in Port Kelang, Malaysia. We have more than 10 years experience manufacturing artificial stones. We owns 3 quarries for quartz sand and 7 production lines for Compressed Quartz, Compress Marble and Compressed Cement. With over 120 skilled employees in our production operation, we can achieve over a million square meters a year. We are much aware of the global warming implications and the future development of sustainable Architecture. As a result we have traded our mining expertise to focus more on researching and developing agglomerate stones.³⁰¹

MSW's brochure also discusses LLWF's production capabilities as well, stating:

Through the years, LLWF STONE has been selling to more than 20 countries around the world, mainly USA, Canada, Australia, Europe, Singapore, Thailand etc. Since 2015, we had expanded 5 half-automatic production lines and 1 processing line for stone sand. With our experience skilled engineering technician and outstanding management, we can offer our customers with stone slabs, cut to size slabs and customized countertops for over 80,000m2 per month in premium quality.³⁰²

MSW's brochure also provides photographs of what it claims is its factory and production process; however, these photos are identical to the ones submitted in various CF28 responses which different MSW Companies claim are Sanctuary Stone's production facilities, but in fact are Vemy Stone's facilities.³⁰³ The bill of lading and invoice numbers are ARKT2107051, which suggests involvement by Ark Trans in this entry.³⁰⁴

Entry [number]4463

²⁹⁹ See U.S. Importers Memo at Re-exported Entries, Entry 3721.

³⁰⁰ *Id.*

³⁰¹ *Id.*

³⁰² *Id.*

³⁰³ *Id.*

³⁰⁴ *Id.*

Flowery Stone did not respond to its CF28; however, it provided some entry and production documents for entry [number]4463.³⁰⁵ For this entry, MSW is again listed as the manufacturer of the QSP entered by Flowery Stone. It provided much of the information it provided for entry [number]3721, including MSW's brochure.³⁰⁶ The sales contract contains a curious clause under the arbitration section which states:

ALL DISPUTES ARISING FROM THE EXECUTION OF, OR IN CONNECTION OF WITH THIS S/C SHALL BE SETTELED THROUGH FRIENDLY NEGOTIATION, THEN THE CASE SHALL BE SUBMITTED TO CHINA INTERNATIONAL ECONOMIC AND TRADE ARBITRATION COMMISSION IN ACCORDANCE WITH THE PROVISIONAL RULES AND PROCEDURE. THE ARBITRATION AWARD IS FINAL AND BINDING UPON BOTH PARTY.³⁰⁷

It is unclear as to why a business transaction between a Malaysian company and a company in the United States would be arbitrated by the China International Economic and Trade Arbitration Commission, but this may be an indication as to why none of the MSW Companies submitted the sales contracts requested in the CF28s. The contract number is ARKT2108002B, which suggests involvement by Ark Trans in this entry.³⁰⁸ Furthermore, for the payment, under details it states "INV MSW21603 ARKT2106033," which suggests some kind of back-to-back invoicing scheme between MSW and Ark Trans.³⁰⁹

The contract also states that MSW is not responsible for late or non-delivery in the event of *force majeure* or any other contingencies beyond MSW's control.³¹⁰ This suggests that the re-export of this entry and shipping costs were born by Flowery Stone. It seems odd that Flowery Stone would pay for a container of QSP to be shipped back to Malaysia before requesting further country of origin documentation from MSW, unless Flowery Stone was aware that such documentation did not exist.

Entry [number]4116

For this entry, MSW is listed as the manufacturer of the QSP entered by Nio.³¹¹ Nio provided no country of origin documents to CBP for this entry other than the bill of lading, invoice and packing list before re-exporting it.³¹² Thus, it appears Nio did not even attempt to demonstrate the country of origin was Malaysia. The bill of lading and invoice numbers are ARKT2106058, which suggests involvement by Ark Trans in this entry.³¹³

³⁰⁵ See U.S. Importers Memo at Re-exported Entries, Entry 4463.

³⁰⁶ *Id.*

³⁰⁷ *Id.*

³⁰⁸ *Id.*

³⁰⁹ *Id.*

³¹⁰ *Id.*

³¹¹ See U.S. Importers Memo at Re-exported Entries, Entry 4116.

³¹² *Id.*

³¹³ *Id.*

Entry [number]3787

For this entry, MSW is listed as the manufacturer of wooden kitchen cabinets and/or QSP entered by Nio.³¹⁴ While the invoice indicates this is a shipment of QSP, the packing list and bill of lading indicate it is wooden kitchen cabinets.³¹⁵ The bill of lading and invoice numbers are ARKT2107009, which suggests involvement by Ark Trans in this entry.³¹⁶ The contract includes the same clause as Entry [number]4463 with respect to the China International Economic and Trade Arbitration Commission.³¹⁷

An examination of the entry reveals consistencies between this entry and other record information with respect to the MSW Companies. Specifically, [items] have been [activity] in what appears to be an effort to [activity].³¹⁸ The boxes are labeled [company].³¹⁹ This reflects further efforts by Ark Trans and the MSW Companies to conceal the country of origin of merchandise entering the United States, which are covered by the *Orders*.

Summary

The Importers filed entries for QSP during the POI that identified Ever Stone or the MSW Companies as the manufacturers in Malaysia. Record evidence indicates that the MSW Companies source their QSP from China and have shifted their evasion schemes to include Agrostone and its related companies. Based on the Importers' responses to the CF28s, or lack of responses, and other evidence placed on the record by CBP, TRLED has determined there is reasonable suspicion that the Importers entered covered merchandise into the United States through evasion, by means of transshipment through Malaysia or by not declaring the correct entry type. Consequently, there is reasonable suspicion of evasion.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that the Importers imported QSP into the United States from China that were transshipped through Malaysia, or misclassified QSP shipped from China, and should have been subject to the *Orders*. Therefore, CBP is imposing interim measures pursuant to this investigation.³²⁰ Specifically, in accordance with 19 USC 1517(e)(1-3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after November 3, 2021, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under 19 USC 1504(b), extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation: November 3, 2021; and

³¹⁴ See U.S. Importers Memo at Re-exported Entries, Entry 3787.

³¹⁵ *Id.*

³¹⁶ *Id.*

³¹⁷ *Id.*

³¹⁸ *Id.*

³¹⁹ *Id.*

³²⁰ See 19 USC 1517(e); see also 19 CFR 165.24.

(3) pursuant to the Commissioner's authority under 19 USC 1623, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.³²¹

In addition, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refile of entries that are within the entry summary rejection period. CBP will also evaluate the Importers' continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 USC 1517(h).

Any future submissions or factual information that you submit to CBP pursuant to this EAPA investigation must be made electronically using EAPA's case management system (CMS) at <https://eapallegations.cbp.gov/>.

Should you have any questions regarding this investigation, please feel free to contact us at eapallegations@cbp.dhs.gov, with paul.j.walker@cbp.gov and patricia.tran@cbp.dhs.gov copied. Please include "EAPA Cons Case 7657" in the subject line of your email. Additional information on this investigation, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/trade-enforcement/tftea/enforce-and-protect-act-eapa>.

Sincerely,



Brian M. Hoxie
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

³²¹ See also 19 CFR 165.24(b)(1)(i-iii).